

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1847

By: Schreiber and Stewart

AS INTRODUCED

An Act relating to building codes; amending 59 O.S. 2021, Section 1000.23, which relates to the Oklahoma Uniform Building Code Commission; providing that the Commission adopt certain code; directing the Department of Human Services to work with the State Fire Marshal to develop certain guidelines; providing that certain child care homes shall not be denied a license; prohibiting stricter requirements; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 1000.23, is amended to read as follows:

Section 1000.23. A. The Oklahoma Uniform Building Code Commission shall have the power and the duty to review and adopt all building codes for residential and commercial construction to be used by all entities within this state. Codes and standards adopted by the Commission shall be the minimum standards for residential and commercial construction in this state. Provided, however, that the Oklahoma Uniform Building Code Commission shall adopt the

1 International Residential Code for two-unit to six-unit residential
2 buildings.

3 B. All public projects shall abide by such minimum standards
4 and requirements; provided, nothing in the Oklahoma Uniform Building
5 Code Commission Act shall prevent or take away from state agencies
6 the authority to enact and enforce requirements containing higher
7 standards and requirements than such minimum standards and
8 requirements.

9 C. Municipalities and other political subdivisions shall abide
10 by such minimum standards and requirements; provided, nothing in the
11 Oklahoma Uniform Building Code Commission Act shall prevent or take
12 away from such municipalities and other political subdivisions the
13 authority to enact and enforce requirements containing higher
14 standards and requirements than such minimum standards and
15 requirements.

16 D. The Oklahoma Uniform Building Code Commission shall have the
17 power and duty to establish a training and certification process for
18 all residential and commercial building code inspectors. The
19 Commission shall establish regional training for the purpose of
20 training the county and municipal inspectors in the Uniform Building
21 Code. The regional training shall be offered at no cost to the
22 participant and shall be funded from the funds received pursuant to
23 Section 1000.25 of this title. Each inspector operating in this
24 state on behalf of any state agency or any municipal or county

1 office may complete regional training and be issued a certification
2 for inspections by the Uniform Building Code Commission on and after
3 January 1, 2015. The training and certification applications,
4 qualifications and procedures shall be promulgated by rules of the
5 Commission. The Commission may establish forms and procedures to
6 implement and administer the provisions of this section.

7 SECTION 2. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 1000.31 of Title 59, unless
9 there is created a duplication in numbering, reads as follows:

10 The Department of Human Services shall work with the State Fire
11 Marshal to develop guidelines that allow family child care homes and
12 large child care homes to operate under the fire protection
13 requirements of the International Residential Code. Family child
14 care homes and large child care homes shall not be denied a license
15 to operate should they comply with the requirements of the
16 International Residential Code. No agency, municipality, county, or
17 other political subdivision of this state shall place stricter fire
18 requirements than those outlined in the International Residential
19 Code on family child care homes and large child care homes.

20 SECTION 3. This act shall become effective November 1, 2025.
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